

Amendment No. 5 to HB1881

Slater
Signature of Sponsor

AMEND Senate Bill No. 1585*

House Bill No. 1881

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 49-6-2606, is amended by deleting subsection (a) and substituting:

(a)

(1)

(A) As a condition of receiving an ESA, participating students in grades three through eleven (3-11) must be annually administered:

(i) A nationally standardized achievement test that is aligned to the respective participating school's instructional plan, as determined by rules promulgated by the state board; or

(ii) The Tennessee comprehensive assessment program (TCAP) tests for math and English language arts.

(B) Each participating school shall annually administer the test or tests required in subdivision (a)(1)(A) to participating students enrolled in the school. Each participating school shall provide the results of the test or tests administered to participating students pursuant to subdivision (a)(1) to the participating student's parents.

(2)

(A) In order to assess academic performance, the department shall annually select a statistical sample of participating students enrolled

in participating schools in any of the grades three through eight (3-8) who were administered TCAP tests for the prior school year.

(B) The state board shall promulgate rules in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, to effectuate this subdivision (a)(2).

(3) By June 30, 2027, and by each June 30 thereafter, each participating school shall provide the results of the tests administered to participating students pursuant to this section to the office of research and education accountability (OREA) in the office of the comptroller of the treasury. A participating school may provide the test results required pursuant to this section using aggregated, deidentified data; provided, that the data must be provided on a form developed by the OREA and in a manner that allows the OREA to group and analyze the results by participating student grade level, household income level, sex, and race. The OREA shall submit an annual report to the education committee of the senate and the committee of the house of representatives having jurisdiction over elementary and secondary education detailing the results of the tests administered to participating students.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.